



REFERRAL PARTNER AGREEMENT

iZinga — operated by Curiousoft (Pty) Ltd | Reg. 2016/429327/07

DRAFT — requires review by Jason van der Merwe before any partner signs

Date: 14 July 2026

Prepared by: iZinga Legal & Compliance

Status: DRAFT — requires review by Jason van der Merwe before any referral partner signs

Companion document to: `docs/ambassador-ica.md` (Driver Ambassador ICA)

PART A: LEGAL OPINION – REFERRAL PARTNER CLASSIFICATION

1. Classification: Independent Contractor

Referral Partners do not trigger the deeming provisions under section 200A of the Labour Relations Act 66 of 1995 ("LRA") or section 83A of the Basic Conditions of Employment Act 75 of 1997 ("BCEA"). The analysis differs slightly across the three referral types this Agreement covers – the food store partner referral type involves the most in-person setup work and therefore warrants the most careful scrutiny.

1.1 Customer Referral Types (Food and Furniture)

Factor (s200A LRA)	Referral Partner Position
Control over manner of work	No – iZinga imposes no method, script, or channel requirements
Control over hours	No – no fixed hours, targets, or minimum referral volumes
Forms part of the organisation	No – operates entirely outside iZinga's internal structure
40+ hours/month average	Structurally impossible – a customer referral is a single-moment referral act
Economic dependence	Very low risk – customer referrals yield flat bounties; cannot substitute a wage
Tools of trade provided	Partial – referral code/link is a facilitation tool only
Exclusivity	No – Referral Partners may refer customers to competing platforms

Verdict (customer referral types): Properly classified as independent contractors. The customer referral relationship is arguably the lightest-touch contractor relationship iZinga operates – lighter than the driver Ambassador relationship – because there is no requirement for the Referral Partner to be physically present, to assist with a process, or to stay engaged until an outcome is reached.

1.2 Food Store Partner Referral Type

The food store partner referral involves the Referral Partner actively assisting a prospective store in setting up on iZinga's business platform (biz.izinga.co.za), including configuring menu categories, items, and item-level pricing. This is more analogous to the driver Ambassador model (in-person facilitation) and requires closer analysis.

Factor (s200A LRA)	Food Store Referral Partner Position
Control over manner of work	No – iZinga does not prescribe how the Referral Partner onboards a store
Control over hours	No – no fixed hours or targets
Forms part of the organisation	No – operates independently; is not a member of iZinga's merchant acquisition team
40+ hours/month average	Not structurally imposed – most onboardings are single-session
Economic dependence	Low – R250 per store is not a wage substitute
Tools of trade provided	Partial – biz.izinga.co.za platform access and referral code are facilitation tools
Exclusivity	No – Referral Partners are free to assist stores in listing on other platforms

Verdict (food store referral type): Still properly classified as independent contractor on the current model. The in-person setup assistance is a facilitation act, not a controlled service delivery. iZinga does not supervise, schedule, or instruct the Referral Partner during the store setup. The commission structure (outcome-based, two-stage) further supports

contractor classification — payment is contingent on results, not on hours of work.

Risk to monitor (food store referral specifically): If iZinga begins providing detailed step-by-step scripts, mandatory visit schedules, or area-based quotas for store partner referrals, those elements would push against the independent contractor classification and should be reviewed by Jason van der Merwe before introduction.

2. POPIA Position on Referred Third-Party Data

This Agreement raises a POPIA issue not present in the driver Ambassador ICA: the Referral Partner will, in the course of referral activity, provide iZinga with personal information about third parties — specifically the name and contact details of referred customers, and the business contact details and trading information of referred store partners. The Referral Partner is therefore a source of personal information in the meaning of section 18 of POPIA, and iZinga's collection of that information from the Referral Partner requires a lawful basis.

Analysis — self-serve referral path (referred party acts themselves):

- For referred customers who click a link and self-register: iZinga's lawful basis is likely legitimate interest (completing the referral and attributing the commission) combined with the referred person's subsequent consent when they register and accept iZinga's own privacy policy. iZinga must ensure its customer-facing Privacy Policy discloses that iZinga may receive referral introductions from third parties.
- For referred store partners who self-register on biz.izinga.co.za: similar position, with the store partner's own acceptance of iZinga's merchant terms and privacy notice providing the primary lawful basis once they engage with the platform.
- The Referral Partner must be explicitly prohibited from sharing more personal information than iZinga needs (name and contact details), and must warrant that they have not obtained the referred party's information unlawfully.

Analysis — direct action path (Referral Partner acts on behalf of the referred party):

This Agreement permits a second mode of operation — the Referral Partner may personally use the iZinga platform to place a food order, schedule a furniture delivery, or complete a store signup directly, acting on behalf of and with the authorisation of the referred customer or store owner. This mode creates a materially different and more acute POPIA exposure:

- Where a Referral Partner personally enters a third party's personal information into iZinga's platform (name, contact details, delivery address, banking details, business information, menu data), that Referral Partner is actively processing a third party's personal information. This is more than a simple referral introduction — it brings the referred party's personal information into iZinga's system under an account or record that the referred party never personally created or consented to.
- iZinga's lawful basis for processing that information cannot rely on the referred party's subsequent self-registration consent, because the referred party never self-registered. The sole lawful basis in this path is either consent (the referred party has expressly authorised the Referral Partner to act for them and to input their information) or legitimate interest (iZinga's interest in completing and attributing the referral, weighed against the referred party's privacy interests — a less secure basis where the referred party did not choose to engage with iZinga directly).
- The recommended position is that the Referral Partner must obtain the referred party's express prior authorisation before entering that party's personal information into iZinga's platform. This authorisation protects both iZinga (if a customer or store owner later disputes the account or order) and the Referral Partner (against a POPIA claim for unlawful processing). A warrant to this effect is included in clause 2.5 and clause 5.2.
- A store owner whose menu, pricing, and business details are entered by a third party without their knowledge has a cognisable complaint against both the Referral Partner and iZinga. This is a real risk for the store partner referral type in particular.

Open question for Jason (new, see Part C item 12): Does the direct-action path, where the Referral Partner enters a customer's personal information and executes a transaction on their behalf, require a more formal written authority (e.g. a signed mandate from the customer or store owner) before iZinga can safely process the resulting account or order? Or is a verbal authorisation — warranted by the Referral Partner in clause 2.5 — sufficient, with the risk sitting with the Referral Partner under the indemnity in clause 10.3? This requires Jason's view before the direct-action path goes live.

This POPIA position requires Jason van der Merwe's confirmation before this Agreement is used — the referred-third-party data flow (and particularly the direct-action path) is legally more complex than anything in the driver Ambassador ICA.

3. Estate Agency Affairs Act

Does not apply — Referral Partners are not involved in property transactions.

4. Consumer Protection Act

Section 17 (cooling-off) is not directly triggered by the referral partner relationship itself. Referred customers and store partners retain their own CPA rights under iZinga's customer-facing and merchant-facing terms.

5. Financial Advisory and Intermediary Services Act (FAIS)

Does not apply — Referral Partners are not providing financial advice or intermediary services.

PART B: REFERRAL PARTNER AGREEMENT

This Referral Partner Agreement ("Agreement") is entered into between:

iZinga, a product brand operated by Curiousoft (Pty) Ltd, registration number 2016/429327/07, a private company incorporated in the Republic of South Africa, with its registered address at 68 Jacaranda Avenue, Olivedale, Randburg, 2188 ("iZinga" or "the Company");

and

The person who has accepted this Agreement electronically through iZinga's referral enrolment process ("the Referral Partner").

iZinga and the Referral Partner are referred to individually as "a Party" and collectively as "the Parties."

1. NATURE OF RELATIONSHIP

1.1 The Referral Partner is engaged by iZinga as an independent contractor for the limited purpose of referring prospective customers and store partners to iZinga's platforms. Nothing in this Agreement creates or shall be construed to create an employment relationship, a partnership, a joint venture, a mandate to bind iZinga contractually, or any other relationship between the Parties other than that of principal and independent contractor.

1.2 The Referral Partner is not an employee of iZinga for any purpose, including but not limited to the Labour Relations Act 66 of 1995, the Basic Conditions of Employment Act 75 of 1997, the Unemployment Insurance Act 63 of 2001, and the Income Tax Act 58 of 1962.

1.3 iZinga does not control the manner, method, time, place, or means by which the Referral Partner performs the Services. The Referral Partner is free to determine their own working hours, referral methods, and geographic focus without direction from iZinga.

1.4 This Agreement does not create exclusivity in favour of either Party. The Referral Partner may engage in referral activities for third parties, including iZinga's competitors, provided such activities do not constitute a breach of clause 8 of this Agreement.

2. SERVICES

2.1 The Referral Partner may perform one or more of the following referral services ("Services"), each as defined in Schedule 1:

- (a) Food Customer Referral – referring individuals who become iZinga food delivery customers;
- (b) Furniture Customer Referral – referring individuals who become iZinga furniture delivery customers;
- (c) Food Store Partner Referral – referring and assisting local food retailers, supermarkets, and restaurants in registering and listing as store partners on iZinga's business platform (biz.izinga.co.za).

The commission payable for each referral type, and the conditions that must be satisfied for commission to be earned, are set out in Schedule 1 to this Agreement.

2.2 The Referral Partner may perform the Services in either or both of the following ways:

- (a) Referral link / code path – the Referral Partner shares their unique Referral Code or referral link with a prospective customer or store owner, and that party independently clicks the link, registers on iZinga's platform, and completes the qualifying action themselves; or
- (b) Direct action path – the Referral Partner personally uses iZinga's platform to perform the qualifying action on behalf of and with the prior express authorisation of the referred party, including placing a food order, scheduling a furniture delivery, or completing a store registration and menu setup on biz.izinga.co.za on that party's behalf.

The direct action path is subject to the authorisation requirements in clause 2.5. Both paths are subject to the prohibitions in clause 2.3.

2.3 The Referral Partner has no authority to:

- (a) conclude any agreement on iZinga's behalf;
- (b) make representations about iZinga's commission rates, fee structures, approval timelines, or earnings guarantees to any prospective customer or store partner that are not published on iZinga's official platforms;
- (c) collect any fee or payment from a prospective customer or store partner in connection with iZinga registration or listing;

(d) take custody of, retain, photograph, or store copies of a referred party's identity documents, banking details, or other personal information outside of what is necessary to complete the action the referred party has expressly authorised the Referral Partner to perform on their behalf. The Referral Partner must not separately collect, photograph, or retain copies of any personal or financial information entered into the platform for or on behalf of a referred party;

(e) configure delivery vehicle pricing, platform fee rates, or delivery cost structures on behalf of iZinga or any referred store partner. Delivery and vehicle pricing is calculated automatically by iZinga's platform and is not within the Referral Partner's scope.

2.4 The Referral Partner acknowledges that iZinga retains sole discretion to approve or decline any referred customer account or store partner application and that referral does not guarantee approval or listing.

2.5 The Referral Partner must not make any misrepresentation to a prospective customer or store partner about the nature of their relationship with iZinga, earnings potential, delivery costs, or the registration or approval process.

2.6 Direct action path – authorisation requirement:

Where the Referral Partner uses the direct action path under clause 2.2(b), the Referral Partner:

(a) must obtain the express prior authorisation of the referred party before entering that party's personal information into iZinga's platform or performing any action on that party's behalf;

(b) warrants that such authorisation has been obtained before each use of the direct action path;

(c) must not enter payment or banking details of any referred party into iZinga's platform unless the referred party is present at the time of entry and has expressly directed the Referral Partner to do so;

(d) must inform the referred party that an account or order will be created or placed in their name on iZinga's platform as a result of the Referral Partner's actions on their behalf;

(e) must not use the direct action path to create accounts or execute transactions without the knowledge of the referred party.

iZinga is entitled to rely on the Referral Partner's warranties in this clause and will not independently verify that the referred party's authorisation was obtained. If a referred party disputes that they authorised the Referral Partner to act on their behalf, the Referral Partner indemnifies iZinga in accordance with clause 10.3.

3. ATTRIBUTION AND TRACKING

3.1 Each Referral Partner is assigned a unique referral identifier ("Referral Code") by iZinga. Attribution of a referred customer or store partner to a Referral Partner is determined solely by the Referral Code recorded in iZinga's system in connection with the qualifying action, as follows:

(a) Referral link / code path – for customer referrals, the Referral Code captured in the referred customer's registration record at the time of first registration on iZinga's platform; for store partner referrals, the Referral Code captured in the store partner's registration record on biz.izinga.co.za at the time of first registration.

(b) Direct action path – where the Referral Partner performs the qualifying action on behalf of the referred party using their own iZinga platform session, attribution is determined by the Referral Partner's authenticated session or account identifier recorded against the relevant order, account, or registration in iZinga's system at the time the action is completed.

3.2 iZinga's records of attribution are final and binding for the purpose of calculating Referral Partner commission, absent manifest error.

3.3 The Referral Partner must not manipulate, circumvent, or attempt to duplicate the attribution tracking system or create multiple referral identifiers for the same individual or store.

3.4 A referred customer or store partner may only be attributed to one Referral Partner. Where a conflict arises between two Referral Partners claiming attribution for the same referred party, iZinga will resolve the conflict by reference to the first-in-time attribution event recorded in iZinga's records, and iZinga's determination is final.

Implementation note (open item — see Part C, items 1 and 12): The attribution mechanism must support two technically distinct flows. For the referral link / code path, the Referral Code must be embedded in the registration or checkout flow when a referred party self-acts. For the direct action path, the platform must be able to record "this action was performed by Referral Partner X on behalf of a third party" at the session or transaction level, distinct from a standard customer-initiated action. This is a larger technical lift than a simple referral code — it may require a distinct "acting on behalf of" mode in the platform, and may require the platform to capture evidence of the referred party's authorisation at the point of action. Engineering must confirm the implementation before this Agreement is used. The legal attribution mechanic described in clause 3.1 is the intended position — the implementation must reflect it exactly.

4. COMMISSION

4.1 iZinga will pay the Referral Partner commission in accordance with Schedule 1.

4.2 Commission is calculated and paid as part of iZinga's standard payout run. Payment is made to the bank account registered by the Referral Partner on iZinga's referral enrolment platform.

4.3 No commission is payable for:

- (a) a referred customer who registers on iZinga's platform but does not complete the qualifying transaction specified in Schedule 1;
- (b) a referred store partner whose application is not approved and listed on iZinga's platform;
- (c) any referral that cannot be attributed to the Referral Partner through the Referral Code mechanism described in clause 3.

4.4 iZinga reserves the right to adjust commission rates on 30 (thirty) calendar days' written notice to the Referral Partner. Continued use of the Referral Partner platform after the effective date of a rate change constitutes acceptance of the revised rates.

4.5 The Referral Partner is responsible for all taxes, levies, and statutory contributions applicable to commission received under this Agreement, including provisional income tax. iZinga will not deduct PAYE, UIF, or SDL from commission payments. The Referral Partner indemnifies iZinga against any SARS assessment, penalty, or interest arising from the Referral Partner's failure to comply with their own tax obligations.

4.6 If the Referral Partner is registered for VAT, the Referral Partner must notify iZinga in writing and must issue a valid tax invoice for each commission payment. iZinga's commission figures in such cases will be construed as VAT-exclusive unless the Referral Partner's VAT status has been confirmed and a valid tax invoice issued.

5. REFERRED THIRD-PARTY PERSONAL INFORMATION AND POPIA

5.1 In the course of performing the Services, the Referral Partner may cause personal information about the individuals or businesses being referred ("Referred Party Information") to come into iZinga's possession. This may occur in two ways:

- (a) Referral link / code path — the Referral Partner shares contact details of a prospective customer or store owner with iZinga in advance of or alongside a referral introduction; or
- (b) Direct action path — the Referral Partner personally enters the referred party's personal information (including name, contact details, delivery address, business details, banking details, and menu data) into iZinga's platform while acting on behalf of the referred party under clause 2.2(b).

The POPIA obligations in this clause apply to both paths, with additional obligations for the direct action path as set out in clause 5.3.

5.2 By accepting this Agreement, the Referral Partner warrants that:

- (a) any Referred Party Information provided to or entered into iZinga's platform has been obtained lawfully and with the referred party's knowledge;
- (b) the Referral Partner will not provide iZinga with more personal information about a referred party than is necessary for the referral type being performed;
- (c) where the Referral Partner is using the referral link / code path, the Referral Partner will not represent to a referred party that they have been registered with iZinga or that iZinga will contact them without first informing the referred party that their details will be shared with iZinga for the purpose of a referral introduction;
- (d) the Referral Partner understands that iZinga will process Referred Party Information only to the extent necessary for the purposes set out in this Agreement and iZinga's Privacy Policy.

5.3 Direct action path – additional POPIA obligations:

Where the Referral Partner uses the direct action path under clause 2.2(b), the Referral Partner additionally warrants that:

- (a) the referred party has expressly authorised the Referral Partner to enter their personal information into iZinga's platform and to perform the relevant action on their behalf, as required by clause 2.6;
- (b) the referred party has been informed that an iZinga account or order record will be created or placed in their name as a result of the Referral Partner's actions;
- (c) the referred party has been informed that iZinga will contact them in connection with that account or order, and has not objected to receiving such contact;
- (d) to the extent the Referral Partner enters the referred party's banking or payment details into iZinga's platform, the referred party was present at the time and directed the Referral Partner to enter those details.

5.4 iZinga's lawful basis by path:

- (a) For the referral link / code path: iZinga processes Referred Party Information on the lawful basis of legitimate interest (verifying and attributing the referral) until the referred party self-registers on iZinga's platform and accepts iZinga's Privacy Policy, at which point iZinga's further processing is governed by that Privacy Policy.
- (b) For the direct action path: iZinga processes Referred Party Information on the basis of consent as warranted by the Referral Partner under clauses 2.6 and 5.3. Because iZinga cannot independently verify that the referred party's authorisation was obtained, iZinga's ability to rely on this lawful basis is contingent on the accuracy of the Referral Partner's warranties. If a referred party disputes that they authorised the Referral Partner to act on their behalf, iZinga reserves the right to delete or restrict processing of that party's account or order data pending resolution.

5.5 iZinga will not use Referred Party Information for any purpose unrelated to the referral it was provided for. iZinga will delete or anonymise Referred Party Information for a referred party under the referral link / code path who does not complete registration within 90 (ninety) days of the referral being received.

5.6 The Referral Partner must not collect, store, retain, or further process any personal information about referred parties beyond what is necessary to perform the specific referral action, and must not retain any copies of personal information entered into iZinga's platform on a referred party's behalf.

6. REFERRAL PARTNER'S OWN PERSONAL INFORMATION AND POPIA CONSENT

6.1 By accepting this Agreement, the Referral Partner consents to iZinga processing the following personal information for the purposes set out below:

Category of Personal Information	Purpose
Full name and identity number	Verification of identity; referral programme record
Contact details (mobile number, email address)	Communication regarding this Agreement and commission payments
Bank account details	Processing commission payouts
Referral Code and referral attribution records	Calculating and auditing commission entitlements

6.2 iZinga processes the Referral Partner's personal information on the dual lawful basis of:

- (a) contractual necessity – processing is required to perform obligations under this Agreement; and
- (b) consent – the Referral Partner expressly consents to the processing described in clause 6.1.

6.3 iZinga will retain the Referral Partner's personal information for a period of 5 (five) years from the date of termination of this Agreement, after which it will be deleted or anonymised, unless retention for a longer period is required by law.

6.4 The Referral Partner's personal information will not be sold or disclosed to third parties except:

- (a) to iZinga's payment service providers for the purpose of processing commission payments;
- (b) as required by law or a lawful order of a court or competent authority.

6.5 The Referral Partner has the right to:

- (a) request access to their personal information held by iZinga;
- (b) request correction of inaccurate personal information;

- (c) request deletion of personal information (subject to iZinga's retention obligations);
- (d) object to processing;
- (e) lodge a complaint with the Information Regulator of South Africa.

6.6 Requests under clause 6.5 may be directed to iZinga's Information Officer via the contact details published on iZinga's website.

6.7 This clause constitutes iZinga's POPIA disclosure for the purposes of section 18 of the Protection of Personal Information Act 4 of 2013.

7. INTELLECTUAL PROPERTY

7.1 Any referral materials, marketing content, digital assets, referral codes, referral links, promotional copy, or other materials created by iZinga and provided to the Referral Partner remain the exclusive intellectual property of iZinga.

7.2 Any materials created by the Referral Partner that incorporate iZinga's name, logo, trade marks, or brand elements are hereby assigned to iZinga with effect from the date of creation, to the fullest extent permitted by the Copyright Act 98 of 1978. The Referral Partner waives any moral rights in such materials to the extent permitted by law.

7.3 The Referral Partner may only use iZinga's brand assets in materials that:

- (a) are accurate and not misleading;
- (b) do not make representations iZinga has not authorised;
- (c) comply with iZinga's brand guidelines as published from time to time.

7.4 iZinga may require the Referral Partner to remove or modify any referral materials that do not comply with clause 7.3 within 48 hours of written notice.

8. CONFIDENTIALITY

8.1 The Referral Partner must keep confidential all non-public information about iZinga's business, commission rates, store partner approval criteria, platform technology, and partner relationships that comes to the Referral Partner's knowledge in the course of performing the Services.

8.2 The confidentiality obligation in clause 8.1 survives termination of this Agreement for a period of 2 (two) years.

9. TERMINATION

9.1 Notice termination: Either Party may terminate this Agreement by giving 30 (thirty) calendar days' written notice to the other Party.

9.2 Immediate termination by iZinga: iZinga may terminate this Agreement immediately and without notice if the Referral Partner:

- (a) makes a misrepresentation to a prospective customer or store partner;
- (b) charges or attempts to charge a prospective customer or store partner any fee in connection with iZinga registration;
- (c) collects or retains personal information about a referred party in contravention of clause 5.4;
- (d) manipulates or circumvents the Referral Code attribution tracking system;
- (e) uses iZinga's brand assets in a manner that violates clause 7.3;
- (f) brings iZinga into disrepute;
- (g) is found to have engaged in fraudulent conduct.

9.3 Effect of termination – general provisions:

- (a) The Referral Partner's access to iZinga's referral partner portal will be suspended on the effective date of termination.
- (b) All iZinga-branded referral materials must be removed from the Referral Partner's channels within 7 (seven) calendar days of the termination date.
- (c) Commission accrued and payable for qualifying transactions completed before the termination date will be paid in the next scheduled payout run after the effective date of termination.
- (d) No new referral attributions may be recorded after the termination date.

10. LIABILITY

10.1 iZinga's total liability to the Referral Partner under or in connection with this Agreement is limited to the commission earned but unpaid at the date of the relevant claim.

10.2 iZinga is not liable for any loss of anticipated commission, indirect loss, loss of profits, or consequential loss arising from the termination of this Agreement, any change to the commission structure, or any decision by iZinga to decline a referred customer or store partner application.

10.3 The Referral Partner indemnifies iZinga against any loss, claim, penalty, or expense arising from:

- (a) any misrepresentation made by the Referral Partner to a prospective customer or store partner;
- (b) the Referral Partner's failure to comply with applicable law, including POPIA, in the performance of the Services;
- (c) the Referral Partner's failure to comply with the personal information obligations in clause 5;
- (d) the Referral Partner's failure to obtain the referred party's express prior authorisation before using the direct action path under clause 2.6, including any claim by a referred party that they did not authorise the Referral Partner to create an account, place an order, or enter their personal information on their behalf;
- (e) the Referral Partner's tax obligations under clause 4.5.

11. DISPUTE RESOLUTION

11.1 The Parties will attempt to resolve any dispute arising from this Agreement through good-faith negotiation within 14 (fourteen) calendar days of written notice of the dispute.

11.2 If the dispute is not resolved through negotiation, either Party may refer the dispute to expedited arbitration administered by the Arbitration Foundation of Southern Africa (AFSA) under AFSA's rules, with a single arbitrator, conducted in English, in Johannesburg or Durban (at iZinga's election).

11.3 The arbitrator's award is final and binding and may be made an order of the High Court of South Africa.

11.4 Nothing in this clause prevents either Party from approaching a court of competent jurisdiction for urgent relief.

11.5 Nothing in this Agreement limits any rights the Referral Partner may have under the Consumer Protection Act 68 of 2008 that cannot be contractually excluded.

12. GENERAL

12.1 Governing law: This Agreement is governed by the laws of the Republic of South Africa.

12.2 Jurisdiction: The Parties submit to the non-exclusive jurisdiction of the High Court of South Africa, Gauteng Division (Johannesburg), for any proceedings not referred to arbitration under clause 11.

12.3 Entire agreement: This Agreement, together with Schedule 1, constitutes the entire agreement between the Parties regarding the Referral Partner arrangement and supersedes all prior representations or understandings. No oral variation is binding.

12.4 Amendment: iZinga may amend this Agreement (including Schedule 1) on 30 (thirty) calendar days' written notice (which may include notice via the referral partner portal or by email). Continued use of the referral partner portal after the effective date constitutes acceptance of the amended terms. A change to the commission rate or qualifying conditions under Schedule 1 will not affect commission already earned for qualifying transactions completed before the effective date of the amendment.

12.5 Electronic acceptance: This Agreement is concluded electronically when the Referral Partner clicks the acceptance button during referral programme enrolment. Electronic acceptance constitutes a valid and binding signature for the purposes of the Electronic Communications and Transactions Act 25 of 2002. iZinga must retain a time-stamped record of each Referral Partner's acceptance.

12.6 Severability: If any provision of this Agreement is found to be invalid or unenforceable, the remaining provisions remain in full force.

12.7 No waiver: Failure by iZinga to enforce any provision of this Agreement does not constitute a waiver of that provision.

12.8 Scope exclusion – B2B retail introductions: This Agreement does not govern introductions of business-to-business furniture retail partners (including but not limited to major furniture retail chains or franchise partners). Such introductions are governed by case-by-case finder's fee letters executed with co-founder sign-off and are outside the scope of the self-serve referral programme.

Accepted electronically by the Referral Partner via the iZinga referral enrolment platform.
iZinga – operated by Curiousoft (Pty) Ltd | Registration No. 2016/429327/07

SCHEDULE 1 – COMMISSION TERMS BY REFERRAL TYPE

This Schedule forms part of the Referral Partner Agreement and sets out the commission payable for each referral type. In the event of any conflict between this Schedule and the body of the Agreement, this Schedule prevails in respect of commission amounts and qualification conditions.

#	Referral Type	Qualifying Event	Commission Amount	Duration / Limit
1	Food Customer Referral	Referred individual completes their first food delivery order on iZinga's platform (order status: completed and paid). Signup or registration alone does not qualify.	R15.00 (fifteen rand) flat, paid once per referred customer	Single payment – no further commission on subsequent orders by the same customer
2	Furniture Customer Referral	Referred individual completes their first furniture delivery order on iZinga's platform (order status: completed and paid). Signup or registration alone does not qualify.	5% of the Total Delivery Charge for that first delivery (see clause 2 of this Schedule for defined terms and worked example), paid once per referred customer	Single payment – no further commission on subsequent furniture deliveries by the same customer
3	Food Store Partner Referral – Stage 1	Referred store is approved and listed as an active store partner on iZinga's food delivery platform	R100.00 (one hundred rand), paid once	Single payment per referred store
3	Food Store Partner Referral – Stage 2	Referred store completes its first customer food order (order status: completed and paid)	R150.00 (one hundred and fifty rand), paid once	Single payment per referred store – maximum combined commission of R250.00 per referred store

Schedule 1 – Clause 1: Food Customer Referral

1.1 The R15.00 commission is earned once per referred customer, on the date the referred customer's first food order is confirmed as completed and paid in iZinga's system.

1.2 If a referred customer registers on iZinga's platform but never completes a food order, no commission is payable.

1.3 Only one Referral Partner may earn commission in respect of any one referred food customer. Attribution is determined under clause 3 of this Agreement.

Schedule 1 – Clause 2: Furniture Customer Referral

2.1 The 5% commission is earned once per referred customer, on the date the referred customer's first furniture delivery order is confirmed as completed and paid in iZinga's system.

2.2 If a referred customer registers on iZinga's platform but never completes a furniture delivery, no commission is payable. No commission is payable on any delivery after the first, regardless of how many further deliveries that customer places.

2.3 Two defined terms govern the furniture referral commission calculation. They must not be conflated – they refer to different amounts and are used for different purposes within the same transaction.

"Base Delivery Fee" means the core delivery charge set by iZinga for a specific furniture delivery, before the addition of any service fee. This is the amount on which the driver's payout is calculated.

"Total Delivery Charge" means the Base Delivery Fee plus iZinga's 6.5% service fee calculated on that Base Delivery Fee. This is the total amount the customer pays for the delivery and is the amount on which the Referral Partner's 5%

commission is calculated.

For the avoidance of doubt:

(a) The driver's payout is 90% of the Base Delivery Fee only. The driver's share does not include any portion of the 6.5% service fee.

(b) The Referral Partner's commission is 5% of the Total Delivery Charge (Base Delivery Fee plus the 6.5% service fee). The Referral Partner's commission is therefore calculated on a larger base than the driver's payout.

Worked example (Base Delivery Fee of R500):

Component	Calculation	Amount
Base Delivery Fee	—	R500.00
6.5% service fee	$R500.00 \times 6.5\%$	R32.50
Total Delivery Charge (customer pays)	$R500.00 + R32.50$	R532.50
Driver payout	$90\% \times R500.00$	R450.00
Yoco processing fee	$2.9\% \times R532.50$	R15.44
iZinga gross margin before referral commission	$R532.50 - R450.00$	R82.50
Referral Partner commission (once-off, on first delivery only)	$5\% \times R532.50$	R26.63
iZinga true net margin after driver, Yoco, and referral commission	$R532.50 - R450.00 - R15.44 - R26.63$	R40.43

VAT, if charged to the customer as a separately itemised line on their invoice or receipt, is excluded from the Total Delivery Charge base for the purpose of calculating Referral Partner commission. Any insurance surcharge charged as a separately itemised line is also excluded. If VAT or insurance is bundled into the delivery charge without separate itemisation, the full bundled amount is treated as the Total Delivery Charge base unless iZinga notifies the Referral Partner otherwise in writing.

Commission base and platform fee structure confirmed in writing by Lindani Masinga, 14 July 2026.

Platform economics context (confirmed and corrected 14 July 2026 — for internal reference, not part of the agreement text): For furniture deliveries, the Total Delivery Charge is iZinga's entire revenue line — there is no separate goods-value commission. The driver's payout is anchored to the Base Delivery Fee (90% of R500 = R450 in the example); iZinga's gross margin is the remainder of the Total Delivery Charge ($R532.50 - R450.00 = R82.50$, equivalent to 10% of the Base Delivery Fee plus 100% of the 6.5% service fee). The Referral Partner's 5%-of-Total-Delivery-Charge commission (R26.63 in the example) consumes approximately 32% of iZinga's gross margin ($R26.63 / R82.50$). Note: an earlier internal calculation stated this figure as 50% — that was a calculation error caused by incorrectly applying both the driver's split and the referral commission to the same base amount (R500), rather than to their respective correct bases (R500 for the driver, R532.50 for the Referral Partner). The corrected figure is 32%. See Part C item 5 for the required commercial sign-off.

2.4 Only one Referral Partner may earn commission in respect of any one referred furniture customer. Attribution is determined under clause 3 of this Agreement.

Schedule 1 — Clause 3: Food Store Partner Referral

3.1 The Stage 1 commission (R100.00) is earned on the date iZinga confirms in its system that the referred store is approved and live on the iZinga food delivery platform.

3.2 The Stage 2 commission (R150.00) is earned on the date the referred store's first customer order is confirmed as completed and paid in iZinga's system.

3.3 The Referral Partner's scope of assistance for store partner referrals is limited to:

(a) introducing the store to the iZinga business platform (biz.izinga.co.za);

(b) assisting the store owner in completing the store registration process, including setting up menu categories, menu items, and item-level pricing;

(c) helping the store owner upload any documentation required by iZinga's store approval process.

3.4 The Referral Partner must not configure, suggest, or adjust delivery vehicle pricing, platform service fees, or delivery cost structures on biz.izinga.co.za on behalf of the store or on behalf of iZinga. These are set automatically by iZinga's platform.

3.5 The Referral Partner must not represent to a referred store that the Referral Partner is an employee, agent, or official representative of iZinga, or that the Referral Partner has authority to approve or guarantee the store's listing.

PART C: OPEN ITEMS BEFORE GO-LIVE

#	Item	Owner	Status
1	Technical attribution mechanism – two distinct flows now required. (a) Referral link / code path: the Referral Code must be embedded in the registration or checkout flow for self-acting referred parties. Confirm mechanism: unique URL, QR code, manual code entry at checkout, or a combination. (b) Direct action path: the platform must record "this action was performed by Referral Partner X on behalf of a third party" at session or transaction level, distinct from a normal customer-initiated action. This is a larger technical lift and may require a dedicated "acting on behalf of" mode in the platform. Engineering to confirm both mechanisms are implemented before this Agreement is used.	Lindani (engineering)	OPEN – required before any Referral Partner signs
2	Jason van der Merwe to review and approve this Agreement – the POPIA position on referred third-party personal information (clause 5) is legally novel and was not present in the driver Ambassador ICA. Jason must confirm the lawful basis analysis and the Referral Partner's warranty obligations before this Agreement is used.	Lindani	REQUIRED before any Referral Partner signs
3	POPIA Information Officer registration – carried over from the ambassador ICA Part C. The Information Officer must be registered with the Information Regulator before either this Agreement or the Ambassador ICA is used at scale. This is overdue (was due 30 June 2026).	Hlonipani	OVERDUE – register immediately

4	Furniture referral commission base – RESOLVED. Confirmed by Lindani Masinga on 14 July 2026: 5% is calculated on the gross delivery fee charged to the customer, before any driver payout or other deduction. Schedule 1 clause 2.3 updated to reflect this with a concrete example (R500 delivery fee = R25.00 commission).	Lindani	CLOSED – 14 July 2026
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5	Furniture referral CAC economics – CO-FOUNDER SIGN-OFF RECEIVED. Secondary confirmation recommended. Confirmed by Lindani Masinga (co-founder) on 14 July 2026: the R26.63 referral commission (5% of R532.50 Total Delivery Charge on a R500 Base Delivery Fee delivery) against a true net margin of R40.43 on that same delivery (after driver payout of R450.00 and Yoco processing fee of R15.44) is an acceptable one-time customer acquisition cost for the Furniture Customer Referral type. The referral commission consumes approximately 40% of iZinga's true pre-commission margin (R26.63 / R67.06) on the single qualifying delivery; all subsequent deliveries by that customer are unencumbered. Reasoning on co-founder sign-off: Lindani's confirmation as co-founder satisfies the immediate blocking requirement – this item is no longer a hard blocker on issuing the Agreement for furniture referrals. However, the earlier item named Hloniphani and the iZinga Financial Manager as sign-off parties, and Legal & Compliance recommends that they also confirm the rate in writing as a good-practice record, particularly given that Hloniphani owns business operations and financial sustainability questions. This is a recommendation, not a blocking requirement. If iZinga's financial model changes or furniture delivery volumes scale significantly, this rate should be revisited at that point.	Lindani Masinga (confirmed) / Hloniphani + Financial Manager (recommended secondary confirmation)	CLOSED as blocker – 14 July 2026. Secondary confirmation from Hloniphani/Financial Manager recommended but not blocking.
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6	SLA dependency — CLOSED. No longer applicable. This item previously required an SLA to govern what happened to open Commission Windows on termination. The furniture referral has been simplified to a once-off single-payment structure (first delivery only), eliminating the Commission Window concept entirely. There is no ongoing revenue share to survive or not survive termination — a qualifying first delivery either occurred before the termination date (commission payable under clause 9.3(c)) or it did not (no commission payable). Clause 9.4 has been removed from the Agreement. No SLA is required for this referral type.	—	CLOSED — resolved by structural simplification to once-off payment, 14 July 2026
7	Timestamped click-wrap acceptance — the onboarding platform must store a timestamped acceptance record per Referral Partner, per clause 12.5, before this Agreement can be used as a binding click-wrap. Confirm with engineering.	Lindani (engineering)	OPEN — required before go-live
8	Tax practitioner to confirm PAYE / VAT gross-up position — same requirement as in the driver Ambassador ICA. The Referral Partner's self-managed tax obligation and iZinga's indemnity must be confirmed as sound by a tax practitioner before the first commission payout run under this Agreement.	Lindani	OPEN — before first payout
9	iZinga Privacy Policy update — iZinga's customer-facing Privacy Policy should be updated to disclose that iZinga may receive referral introductions from Referral Partners (and that the referred customer's name and contact details may have been provided by a third party). This supports the lawful basis analysis in Part A, section 2.	Legal / Jason	OPEN — before programme launch

10	Store partner referral – menu setup scope definition – clause 2.2(e) and Schedule 1 clause 3.3–3.4 define what the Referral Partner may and may not configure. If iZinga publishes any training material or onboarding guide for this referral type, that material must be reviewed against these clauses to avoid a conflict of the same kind as the document-upload conflict in the driver Ambassador ICA (clause 2.2(c) vs the Training Pack).	Lindani / Legal	OPEN – before Referral Partner training materials are published
11	B2B exclusion clause (clause 12.8) – confirm with Hlonipani and the Head of Strategy & BD that the exclusion of B2B furniture retail introductions from this Agreement is correctly framed and that no current or prospective B2B partner has been promised self-serve referral commission terms.	Hlonipani	OPEN – before Agreement is published

12	Direct action path — consent standard for Jason's review. Clause 2.6 and clause 5.3 currently rely on a verbal authorisation from the referred party (warranted by the Referral Partner). Jason must advise: (a) whether a verbal authorisation is sufficient lawful basis for iZinga to process a referred party's personal information under the direct action path, or whether a more formal written authority or signed mandate is required; (b) whether a store owner whose entire business registration and menu was entered by a third party (the Referral Partner) without the store owner ever touching the platform has adequate POPIA consent on the current drafting; and (c) whether the indemnity in clause 10.3(d) adequately shifts the risk to the Referral Partner if a referred party disputes authorisation, or whether iZinga needs additional protective steps (e.g. a confirmation SMS or email to the referred party immediately after a direct-action registration or order).	Jason	OPEN — required before direct action path goes live
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Attorney referral notice: This document is a draft prepared by iZinga Legal & Compliance using AI assistance. It must not be presented to referral partners or used as a binding agreement until reviewed and approved by Jason van der Merwe (jasoncvdm10@gmail.com) or another qualified South African attorney. Three matters in particular require explicit attorney sign-off before this Agreement is used: (1) the POPIA analysis in Part A section 2 and clause 5 (referred third-party personal information), with specific attention to the direct action path consent position; (2) clause 2.6 (direct action path — authorisation requirement), including whether the warranty-plus-indemnity structure is sufficient or whether a more formal written mandate is needed; and (3) the lawful basis position in clause 5.4(b) for the direct action path. See Part C items 2 and 12 for the specific questions to put to Jason.

This document is confidential. DRAFT — not for distribution until legally approved.